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Case Number: 25NNCV00077 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

MOTION FOR LEAVE TO WITHDRAW DEEMED ADMISSIONS

MOTION FOR JUDGMENT ON THE PLEADINGS

Los

Angeles Superior Court Case # 25NNCV00077

(1) Motion for Leave to Withdraw Deemed Admissions

MP: Defendant Luis

Carmona

RP: Plaintiff Headway

Capital, LLC

(2) Motion for Judgment on the Pleadings

MP: Plaintiff Headway

Capital, LLC

RP: Defendant Luis

Carmona

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS AND RELEVANT

BACKGROUND:

Headway Capital, LLC ("Plaintiff") alleges that on February 3, 2023, it entered into a written Business Use Line of Credit Agreement ("Agreement") with Forward Inglewood, Inc. ("Forward") and Luis Carmona ("Carmona") (collectively, "Defendants"), wherein Carmona personally guaranteed the loan. Plaintiff alleges that within the last four years, Defendants defaulted under the Agreement's terms and failed to make payment thereunder, thereby breaching the Agreement. Plaintiff seeks \$81,638.62 in damages.

The Complaint, filed January 6, 2025, alleges a single cause of action for Breach of Contract.

On February 24, 2025, Carmona (a self-represented litigant) answered. On January 9, 2026, the Court granted Plaintiff's unopposed motion for an order deeming RFAs admitted against Carmona and ordered Carmona to pay \$60 in sanctions within 30 days of the order.

On April 23, 2026, Forward's default was entered.

MOTIONS

ON CALENDAR:

On July

9, 2026, Carmona filed a Motion for Leave to Withdraw Deemed Admissions and to Vacate or Set Aside January 9, 2026 Order.

On August 4, 2026, Plaintiff filed an opposition. On September 4, 2026, Carmona filed an untimely reply (due by September 3, 2026).

On July

15, 2026, Plaintiff filed a Motion for Judgment on the Pleadings ("MJOP"). On August 31, 2026, Carmona filed an untimely opposition (due by August 28, 2026). (The

Court notes that on August 31, 2026, Carmona filed a Substitution of Attorney form, stating that he was formerly a self-represented litigant and has now retained counsel.)

RELEVANT BACKGROUND:

On August 15, 2025, Plaintiff

filed a Motion for Order Deeming the RFA Admitted against Carmona. The proof of service indicates that the RFA motion was served via mail on "Forward Inglewood, Inc., 208 La Brea Ave, Inglewood CA 90301" and "Luis Carmona, 330 Arden Ave Ste 110, Glendale CA 91203."

On January 9, 2026, the Court

granted Plaintiff's unopposed Motion to Deem the RFAs Admitted against Carmona. The Court ordered Carmon to pay \$60 in monetary sanctions to within 30 days of this order.

On January 15, 2026, Plaintiff's

Notice of Ruling shows that it was served on "Forward Inglewood, Inc. Unk" at 208 S. La Brea Ave., Inglewood, CA 90301.

On April 7, 2026, Plaintiff filed a Notice of Order regarding the January 9, 2026 Order, stating that it was served on Carmona at 330 Arden Ave, #110, Glendale CA 91203.

On July 31, 2026, Plaintiff's MJOP

initially came for hearing. The Court continued the hearing to September 11, 2026 because: (1) a "Notice of Continued Hearing" was mailed on July 14, 2026 to "Luis Carmona c/o Laura Portillo, Esq. / PORTILLO RONK LEGAL TEAM" at 5176 Corsa Ave, Ste. 207 Westlake Village, CA 91362" and Carmona at the Arden address, but it did not appear that the MJOP papers themselves were served on Carmona; and (2) judicial economy would be

promoted by considering Carmona's Motion to Withdraw Deemed Admissions concurrently with Plaintiff's MJOP.

The Court notes that though Portillo Ronk Legal Team was served with the Notice of Continued Hearing (filed July 14, 2026) and is identified as "Counsel for Defendant Luis Carmona" for Carmona's July 9, 2026 Motion to Withdraw Deemed Admissions, there is no substitution of attorney form filed indicating that Carmona was represented by legal counsel at that time.

On August 31, 2026, Carmona filed a Substitution of Attorney form stating that he was formerly a self-represented litigant and is now being represented by attorney Laura Portillo.

MOTION TO WITHDRAW DEEMED ADMISSIONS ANALYSIS:

A.

Legal Standard

C.C.P. §
states:

(a)

A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.

(b)

The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.

(c)

The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following:

(1)

An order that the party who obtained the admission be permitted to pursue

additional discovery related to the matter involved in the withdrawn or amended admission.

(2)

An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.

(C.C.P. §

2033.300; Wilcox v. Birtwhistle (1999) 21 C4th 973, 979-980 [finding that relief may be granted even if no responses were served]; Weil & Brown, The Rutter Guide, Cal. Prac. Guide Civ. Pro. Before Trial (June 2026 Update) Ch. 8G-8, § 8:1386b [“Even though CCP § 2033.300 refers only to withdrawal or amendment of an admission, this includes admissions deemed admitted by the court under CCP § 2033.280(b) for failure to respond.”].)

The

discretionary prong of C.C.P. § 473(b) states:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

(C.C.P.

§ 473(b).)

B.

Discussion

Carmona

moves to vacate the Court’s January 9, 2026 order deeming the RFAs admitted, withdraw the deemed admissions, permit Carmona to serve verified RFA responses, and continue or deny Plaintiff’s MJOP as it relies on the deemed admissions. A copy of the proposed RFA responses is attached as Exhibit A to the motion. (Carmona Decl., ¶10, Ex. A.)

In

support of the motion, Carmona provides his declaration. Carmona states he did not receive actual notice of Plaintiff's RFA motion in time to oppose or serve responses before the hearing, he did not intentionally ignore the motion, and he did not intend to admit liability or concede issues raised by the RFAs. (Carmona Decl., ¶3.) He states that during the relevant time period, his mailing/service address was: 330 Arden Ave #110, Glendale CA 91203.

(Id., ¶4.) He states he did not receive the RFA motion

at that address nor the January 15, 2026 Notice of Ruling. (Id., ¶¶5-6.) The Notice of Ruling's proof of service states that "Forward Inglewood, Inc. Unk" was served but does not identify Carmona individually as a person served.

(Id., ¶6.) He states that

he first learned of the deemed admission on July 6, 2026 when he received the

MJOP via mail. (Id., ¶7.) After he learned of the order and Plaintiff's

attempt to use the deemed admissions in the MJOP, he promptly sought legal

assistance and asked counsel to seek relief from the deemed admissions. (Id., ¶8.) He disputes Plaintiff's claims and contends

that Plaintiff should not obtain judgment based on admissions due to lack of notice and service problems. (Id.,

¶9.)

Carmona

argues that the RFAs were deemed admitted as a result of mistake, inadvertence,

surprise, and excusable neglect because he did not receive actual notice at his

correct address, as evidenced by Plaintiff's inconsistent service records. He relies on Plaintiff's January 15, 2026

Notice of Ruling of the Court's January 9, 2026 Order, which was served on

Forward only, which differed from Plaintiff's purported service of the MJOP to

Carmona's Arden address. He argues that

these inconsistencies in Plaintiff's service to the correct address support

granting his motion based on surprise and excusable neglect.

First, Carmona must establish

that the admissions were the result of mistake, inadvertence, or excusable neglect.

The Court finds that Carmona has

met this burden. Carmona affirms that

his address was the Arden address and Plaintiffs' proof of service shows that the RFA motion was served to this address.

However, Carmona states he did not receive the RFA motion at his address,

and only learned about the RFA Motion when he received the Notice of Ruling on

July 6, 2026 by mail. (Carmona Decl.,

¶¶4-5, 7.) The Court will accept

Carmona's representation made under the penalty of perjury that he did not receive notice of the RFA motion. As he claims he did not receive the RFA motion, he has established that the omissions were the result of mistake, inadvertence, or excusable neglect for his failure to oppose or prepare RFA responses prior to the hearing.

Second,

the Court must determine whether Plaintiff (the party who obtained the admission) will not be substantially prejudiced in maintaining its action on the merits.

Carmona

argues that Plaintiff will not suffer substantial prejudice because this is a straightforward collections case, such that there is no risk of lost evidence, unavailability of witnesses, etc. and denying Carmona relief would result in a windfall to Plaintiff. In opposition, Plaintiff argues that it would suffer prejudice because it detrimentally relied on the Court's January 9, 2026 Order, forewent pursuing additional discovery, and drafted the MJOP. Plaintiff contends that it was actively pursuing judgment and that granting this motion would reopen discovery after Carmona's nearly year-long delay.

However,

the Court does not find that Plaintiff's claim of prejudice to be so great as to warrant denying the motion. While granting Carmona's requested relief will result in an inconvenience and delay to Plaintiff, the Court recognizes that the law strongly favors trial and disposition on the merits." (See Henderson v. Pacific Gas & Electric Co. (2010) 187 Cal.App.4th 215, 230.)

As such,

Carmona's Motion for Leave to Withdraw Deemed Admissions and to Vacate or Set Aside January 9, 2026 Order is granted.

The deemed admissions against Carmona entered on January 9, 2026 shall be withdrawn.

MOTION FOR JUDGMENT ON THE
PLEADINGS ANALYSIS:

A.

Legal Standard

A

plaintiff may move for judgment on the pleadings on the ground that: (1) the complaint states facts sufficient to constitute a cause or causes of action against the defendant and (2) the answer does not state facts sufficient to constitute a defense to the complaint.

(C.C.P. § 438(c)(1)(A).) The

grounds for the motion shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (C.C.P. § 438(d).)

“Any

matter admitted in response to a request for admission is conclusively established against the party making the admission for purposes of the pending action, unless the court permits a withdrawal or amendment of the admission under section 2033.300. (§ 2033.410, subd. (a).)” (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1418.)

B.

Meet and Confer

C.C.P. §

439(a) requires that the moving party meet and confer with the party who filed the pleading that is subject to the motion for judgment on the pleadings. Upon review, the Court finds the meet and confer requirements were met. (Marquez Decl., ¶¶10-11.)

C.

Discussion

Plaintiff seeks judgment on the pleading, arguing: (1) Carmona's answer does not controvert Plaintiff's allegations in the Complaint, (2) the Requests for Admissions (“RFAs”) were admitted against Carmona (Mot., Ex. 1 [RFAs], Ex. 2 [January 9, 2026 Order]), and (3) the Complaint alleges sufficient facts against Defendant.

In light of the ruling on

Carmona's Motion for Leave to Withdraw Deemed Admissions and to Vacate or Set

Aside January 9, 2026 Order, the MJOP is denied as the RFAs are no longer deemed admitted.

As the deemed admissions were the sole basis for Plaintiff's MJOP, the MJOP is denied.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant

Luis Carmona's Motion for Leave to Withdraw Deemed Admissions and Plaintiff Headway Capital, LLC's Motion for Judgment on the Pleadings came on regularly for hearing on September 11, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

DEFENDANT CARMONA'S MOTION FOR LEAVE TO WITHDRAW DEEMED ADMISSIONS AND TO VACATE OR SET ASIDE THE JANUARY 9, 2026 ORDER IS GRANTED.

PLAINTIFF HEADWAY CAPITAL, LLC'S Motion for Judgment on the Pleadings IS DENIED.

case management conference is scheduled for december 8, 2026 at 9:00 am.

PLAINTIFF TO PROVIDE NOTICE.

IT IS SO ORDERED.